

Kapil Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 October 2021 · Writ - C No. 22325 of 2021 · Writ - C No. 22325 of 2021 · **Writ disposed; 50% deposit stays recovery pending CGRF decision.**

HEADNOTE

Without deciding a pending billing complaint, the Division Bench disposed of the writ by keeping the consumer on the Clause 7.10 Consumer Grievance Redressal Forum path. If 50% of the remaining billed amount was deposited within three weeks, recovery of the balance would stay until the Forum decided; the Forum was to decide within six weeks of receiving the order. Default restored the licensee's right to enforce the bill. Any deposit was subject to the Forum's decision and adjustable against future bills if the complaint succeeded.

FACTUAL SUMMARY

Kapil Kumar sought a mandamus to the Consumer Grievance Redressal Forum under Clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005, to decide his complaint against a bill of Rs.63,912 within a fixed time, and to restrain the distribution licensee from recovering the amount until then. After filing the writ he deposited Rs.10,000 (Rs.9,400 plus Rs.600) and asked that recovery of the balance be stayed. Counsel for the licensee pressed for deposit of the entire remaining amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF billing complaint — conditional stay of recovery

HOLDING

A consumer who has already complained to the Consumer Grievance Redressal Forum under Clause 7.10 against a disputed bill is not entitled to a merits decision on that bill in writ jurisdiction. The Court may dispose of the writ by directing the Forum to decide the complaint within a fixed period and, if the consumer deposits 50% of the remaining billed amount within the time allowed, staying recovery of the balance until the Forum decides; default permits the licensee to enforce the bill. Any such deposit is subject to the Forum's decision and, if the complaint is allowed, is adjustable against future bills. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The writ seeking a time-bound CGRF decision and stay of recovery on a pending bill complaint was disposed by relegating the billing dispute to the Clause 7.10 Forum, without a merits grant or refusal on the bill. ¶ 1

clause-7.10-forum-ombudsman-route-for-billing-grievances The consumer's challenge to a bill of Rs.63,912 had already been taken to the Forum under Clause 7.10; the Court treated that Forum as the proper route and bound it to decide within six weeks of receiving the order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DISPUTED BILL OF RS.63,912 WAS CORRECTLY RAISED

Left to the Consumer Grievance Redressal Forum on the pending Clause 7.10 complaint. ¶ 1